

****03.08.2023****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed an investigation in July of this year regarding the operator Med Life SA and found a violation of the provisions of Article 12 paragraph (4) and Article 15 paragraph (3) of Regulation (EU) 679/2016 (GDPR).

As such, Med Life SA was fined in the amount of 9,839.6 lei, equivalent to 2,000 EURO.

The sanction was applied following a complaint alleging that the operator violated the complainant's right of access by refusing to provide certain video recordings from the reception of one of its hospitals. During the course of the investigation, the National Authority for the Supervision found that the operator Med Life SA did not provide the complainant with the requested video recordings through their request to exercise the right of access, thus violating the provisions of Article 15 paragraph (3) of the GDPR.

Additionally, the operator violated the provisions of Article 12 paragraph (4) in conjunction with Article 15 paragraph (3) of the GDPR as the responses sent to the complainant did not contain information regarding the possibility of filing a complaint with the National Authority for the Supervision of Personal Data Processing and of initiating judicial proceedings.

In this context, we remind that Article 12 paragraph (4) of Regulation (EU) 679/2016 states that "If the controller does not take action regarding the request of the data subject, the controller shall inform the data subject without undue delay and at the latest within one month of receiving the request, of the reasons for not taking action and of the possibility of lodging a complaint with a supervisory authority and of seeking a judicial remedy."

Concurrently, the operator was also subjected to the corrective measure of responding to the complainant's requests by providing a copy of their personal data as stipulated in Article 15 paragraph (3) of the GDPR, namely the requested video recordings, for the time period during which the complainant was present in the operator's hospital, while respecting, where applicable, the provisions of Article 15 paragraph (4) of the GDPR.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****